The Year The Label Changed

What 2026 food regulation means for a non-alcoholic beverage business

From the 38th Annual Food Label Conference, June 1-2, 2026

Why You Are Hearing About This

- For years, one label worked in every state.
- That is ending in 2026.
- Federal reform and state laws are arriving at the same time.
- This briefing translates the conference into plain business terms.

The Whole Story In One Line

Stop trying to predict the rules.

Get organized enough to move fast when any of them lands.

Two Forces Are Colliding

- Federal reform under MAHA, the "Make America Healthy Again" agenda.
- A state patchwork of separate ingredient and labeling laws.
- Both land on the same can at the same time.

The Scale Of The State Wave

- 2023: 3 ingredient bills in 2 states.
- 2025 to 2026: more than 140 bills across 42 states.
- New laws on the books in 13 states.
- More than 100 ingredients targeted somewhere.
- California leads and writes the template others copy.

Five Federal Changes To Track

- GRAS overhaul: the "decide it is safe yourself" path is closing.
- Synthetic dyes: six petroleum colors phasing out by end of 2026.
- Ultra-processed food: an official definition is being written.
- Front-of-package box: a Low / Medium / High nutrition rating.
- The new "Healthy" rule: vitamins no longer rescue an unhealthy product.

What GRAS Means For You

- GRAS means "Generally Recognized As Safe."
- Companies could self-certify ingredients without telling FDA.
- FDA has proposed closing that path.
- Action: keep an audit-ready safety file for every ingredient you rely on.

Front-Of-Package Labeling

- A new front-label box rates Saturated Fat, Sodium, and Added Sugars.
- Each gets a Low, Medium, or High mark.
- Added sugar is the most likely "High" on a sweetened drink.
- It reshapes the front panel, so plan one coordinated redesign.

California First: New Ingredient Laws

- AB 418 bans BVO and Red No. 3 in any product sold in California.
- Deadline: January 1, 2027.
- AB 660 standardizes date labels by July 1, 2026.
- BVO and Red No. 3 are the near-term beverage items. Check formulas now.

California: Proposition 65

- A 1986 right-to-know law. It bans nothing; it requires warnings.
- A plaintiff only has to show a listed chemical is present.
- The burden then shifts to you to prove the exposure is safe.
- Drivers are heavy metals and acrylamide carried in by ingredients.
- Defense is ongoing: testing, supplier indemnity, clear warnings.

Why Beverages Are A Target

- Added sugar is the most politically charged nutrient of 2026.
- Sugar alternatives are the next labeling battleground.
- SNAP rules in 23 states block sweetened and energy drinks.
- Some wording is broad enough to catch zero-sugar lines.
- Color and preservative swaps hit drinks directly.

The Upside For A Clean Line

- Zero-sugar and dye-free is where the rules are heading.
- A good front-of-package rating can be a brand asset.
- An honest "no artificial colors" claim can be a brand asset.
- The catch: non-nutritive sweeteners are the part most likely to draw a challenge.

The Marketing Lesson On Claims

- A claim is safe only where science, marketing, and legal overlap.
- Courts judge the whole package, not just the words.
- A quiet supplier swap that skips claim review is the classic trap.
- "Natural," "clean," and "guilt-free" have no fixed legal meaning.
- Anything an influencer or AI tool writes is the brand's liability.

Get Organized Internally

- Regulatory decides what must be true on the label.
- Quality Assurance makes it true on every run.
- Use one versioned spec with sign-off from both.
- Decide who can authorize a "can we run?" call before the line stops.

What AI Can And Cannot Do

- Clean data and a clear problem come before any tool.
- Keep a human in the loop on anything with legal risk.
- Broad, meaningful impact is five-plus years out.
- Regulatory monitoring is a valid, reviewed use case.

What Talking Rain Should Do

- Build one master list of ingredients and claims, mapped by function.
- Clear BVO and Red No. 3 from California products before 2027.
- Run a Prop 65 exposure check on heavy metals and acrylamide.
- Audit front-of-package and "healthy" claims; plan one redesign window.
- Route every supplier or formula change through claims review.

The Takeaway

Readiness beats prediction.

One clean list of ingredients and claims is the foundation for all of it.

Full detail: food-label-conference-2026-beverage-briefing.md